

COVERAGE COMPARISON — MEDIA & ENTERTAINMENT

Full Coverage Comparison

A like-for-like, section-by-section comparison of the TMHCC Media & Music Combined wording against five competitor wordings (Tysers/Zurich, Yutree/AXA, Liberty, Allianz and AXA XL).

Wordings reviewed

- TMHCC — Tokio Marine HCC — Media & Music Combined (Tokio Marine HCC); 15 sections (master/primary wording)
- Tysers (Zurich) — Tysers “Focus” Combined ‘All Risks’ Media policy (Zurich Insurance plc (capacity)); 9 sections
- Yutree (AXA) — Media & Entertainment by Yutree (AXA Insurance UK plc (capacity); Yutree Underwriting (MGA)); 12 cover sections
- Liberty — Liberty Entertainment Combined Policy (Liberty (Liberty Specialty Markets)); 6 cover sections
- Allianz — Allianz Entertainment ‘Complete’ Policy (Allianz); 8 cover sections (+ Terrorism)
- AXA XL — AXA XL Media & Entertainment Combined Corporate (Crisis Management & Special Risks) (XL Catlin Insurance Company UK Ltd (AXA XL)); 3 operative sections (MD / BI / Liability)

Indicative wording comparison against the TMHCC Media & Music Combined wording — for broking reference only. Always refer to the full policy wordings.

Market-ready subject to final TMHCC legal / underwriting sign-off. Prepared from the wordings supplied; competitor capacity insurers noted where stated.

1 Executive summary

TMHCC's Media & Music Combined wording is, structurally, the broadest in the peer group reviewed. It is the only wording that offers all fifteen sections in a single contract, and it is the only wording to provide Loss of Licence, Commercial Legal Expenses, Management Liability and a genuine standalone Cyber-liability section. Three of the five competitors (Liberty, Allianz and AXA XL) are property / business-interruption / liability combined packages and contain no media, professional-indemnity, production-indemnity, cyber, legal-expenses or management-liability cover at all — AXA XL despite carrying a 'Media & Entertainment' title.

The meaningful competition therefore sits in the sections the wordings share — principally Media Liability / Professional Indemnity (where Tysers, via Zurich, and Yutree, via AXA, both offer strong wordings) and the property / BI / liability suite (where Allianz and Liberty are mature property-led packages).

Headline conclusions

- **TMHCC wins outright:** TMHCC is broader or unique on at least six rows (Terrorism vs Tysers; Goods in Transit; Loss of Licence; Legal Expenses; Management Liability; standalone Cyber).
- **Competitors broader:** Tysers PI is worldwide, covers patents, funds statutory/criminal defence costs (GBP 1m), and adds a distributors-&-purchasers extension and journalistic source-protection costs. Tysers and Yutree both offer Personal Accident, which TMHCC does not.
- **Broadly equivalent:** Core media-liability grants (defamation, IP, privacy, professional negligence, defence costs in addition) are broadly equivalent across TMHCC, Tysers and Yutree.
- **TMHCC clearer:** TMHCC's data-protection defence costs, clean cyber-exclusion carve-out for the liability sections, and favourable fines/penalties write-back are clearer than at least one competitor.

Bottom line: TMHCC already presents as the most complete media & entertainment package in this peer group. A focused set of Media-Liability enhancements (a Personal-Accident option, a worldwide/US-Canada territory option, distributors & source-protection extensions, and a clarifying criminal-defence cross-reference) would let TMHCC show a tick on virtually every row — see the separate Gap-Fill / Wording Enhancement Strategy.

2 Methodology and documents reviewed

Documents reviewed

Wording	Full title	Capacity / insurer	Structure
TMHCC	Tokio Marine HCC — Media & Music Combined	Tokio Marine HCC	15 sections (master/primary wording)
Tysers (Zurich)	Tysers “Focus” Combined ‘All Risks’ Media policy	Zurich Insurance plc (capacity)	9 sections
Yutree (AXA)	Media & Entertainment by Yutree	AXA Insurance UK plc (capacity); Yutree Underwriting (MGA)	12 cover sections
Liberty	Liberty Entertainment Combined Policy	Liberty (Liberty Specialty Markets)	6 cover sections
Allianz	Allianz Entertainment ‘Complete’ Policy	Allianz	8 cover sections (+ Terrorism)
AXA XL	AXA XL Media & Entertainment Combined Corporate (Crisis Management & Special Risks)	XL Catlin Insurance Company UK Ltd (AXA XL)	3 operative sections (MD / BI / Liability)

Comparison method

- All six wordings were parsed in full to text; coverage was compared by FUNCTION, not heading, because the wordings are structured differently.
- Section maps were taken from each policy’s contents/insuring clauses; feature-level findings from the operative clauses, extensions, conditions and exclusions actually read.
- Where a clause could not be verified from the wording it is marked ‘? requires review’ rather than assumed.
- No cover has been invented; competitor marketing language has not been treated as cover.
- TMHCC is recorded as having a gap ONLY where at least one competitor genuinely provides broader, clearer or materially useful cover.
- Exclusions, limits, conditions, warranties and write-backs were reviewed in detail and are not softened.
- Liberty, Allianz and AXA XL are property / BI / liability combined packages and contain NO media/PI/E&O, production-indemnity, cyber-liability, legal-expenses or management-liability sections.
- All five competitor wordings have now been mapped, including AXA XL (the fifth wording).

Reading the matrices: ✓ = cover clearly present · ● = partial / conditional / sub-limited · ✗ = not covered / not identified · ? = unclear, requires review · — = not applicable. In the EXCLUSIONS tables only, ✓ means the exclusion APPLIES, ● means a partial exclusion or write-back, and ✗ means the exclusion is absent or carved back.

3 Market comparison at a glance

Section-by-section availability across all six wordings. This is the headline coverage matrix; feature-level detail for the Media Liability / PI section follows in part 4.

✓ Covered ◐ Partial / conditional / sub-limit ✗ Not covered / not identified ? Unclear – requires review

Section of cover	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL	Comment / practical impact
S1 · Business “All Risks” (premises buildings & contents)	✓	✓	✓	✓	✓	✓	Equivalent · All six offer premises/contents material damage on an all-risks basis. Allianz, Liberty and AXA XL are property-led packages with granular MD specifications; TMHCC consolidates IT/premises cover here.
S2 · Property & Equipment “All Risks” (production/entertainment equipment)	✓	✓	✓	◐	✓	✓	Equivalent · Owned and hired-in production/entertainment equipment. Tysers (Production Property), Yutree (Production property), Allianz (Specified All Risks), AXA XL (‘Technical Equipment’ within Material Damage). Liberty covers entertainment equipment via specified Schedule items.
S3 · Business Interruption “All Risks”	✓	✓	✓	✓	✓	✓	Competitor broader · All offer BI. Allianz is structurally broader (splits Increased Cost of Working and Book Debts into discrete sections). AXA XL has a full BI section (incl. Rent Receivable / Turnover). Confirm TMHCC S3 expressly covers ICOW/AICOW and book debts.
S4 · Terrorism	✓	✗	✓	✓	✓	✗	TMHCC stronger · TMHCC, Yutree, Liberty and Allianz provide terrorism cover. Tysers EXCLUDES terrorism (no buy-back). AXA XL EXCLUDES terrorism absolutely (Policy Exclusion 3.4, ex-Employers’ Liability) — client would need standalone Pool Re.
S5 · Employers’ Liability	✓	✓	✓	✓	✓	✓	Equivalent · Statutory EL provided by all six (typically GBP 10m). Broadly equivalent. AXA XL = sub-section 7C.
S6 · Public Liability	✓	✓	✓	✓	✓	✓	Equivalent · Provided by all. Competitors combine Public & Products; TMHCC splits Public (S6) and Products (S7). AXA XL = sub-section 7A.
S7 · Products Liability	✓	✓	✓	✓	✓	✓	Equivalent · Provided by all (combined with Public in the competitor wordings). AXA XL = sub-section 7B.
S8 · Money	✓	✓	✓	✓	✓	◐	Equivalent · Money cover provided by all. AXA XL provides Money as a sub-limited ‘Money’ specification WITHIN the Material Damage section (schedule-driven) rather than a standalone section.
S9 · Goods in Transit	✓	✗	✓	✗	✓	✗	TMHCC stronger · TMHCC, Yutree (GIT section) and Allianz (Own Goods in Transit) provide GIT. Tysers, Liberty and AXA XL do NOT have a dedicated GIT section.
S10 · Loss of Licence	✓	✗	✗	✗	✗	✗	TMHCC stronger · UNIQUE to TMHCC across all five competitors. Premises-licence loss cover under the Licensing Act 2003 — highly relevant for venues/festivals.
S11 · Production Indemnity “All Risks”	✓	✓	✓	✗	✗	✗	TMHCC stronger · TMHCC, Tysers (Multimedia & Producers Indemnity) and Yutree (Production Indemnity) cover production costs / cast / negatives. Liberty, Allianz and AXA XL do NOT offer production indemnity.
S12 · Media Liability / Professional Indemnity (E&O)	✓	✓	✓	✗	✗	✗	Equivalent · The heart of a media wording. TMHCC (S12), Tysers (PI/E&O) and Yutree (PI-Media + PI-Events) provide it. Liberty, Allianz and AXA XL provide NO media/PI/E&O cover — despite AXA XL’s ‘Media & Entertainment’ branding.
S13 · Commercial Legal Expenses	✓	✗	✗	✗	✗	✗	TMHCC stronger · UNIQUE to TMHCC (ARAG-style legal expenses). No competitor

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

							wording includes a legal-expenses section.
S14 · Management Liability (D&O / EPL etc.)	✓	✗	✗	✗	✗	✗	TMHCC stronger · UNIQUE to TMHCC. No competitor wording includes management-liability cover.
S15 · Cyber Liability (standalone)	✓	✗	🌙	✗	✗	✗	TMHCC stronger · UNIQUE — TMHCC ‘CyberGuard’ is a genuine standalone cyber policy. Yutree offers Computer Breakdown only. AXA XL has NO cyber section and a broad cyber EXCLUSION (only a Data Protection Act 2018 carve-out within Public Liability). Others: none.
(+) Personal Accident & Business Travel	✗	✓	🌙	✗	?	✗	Competitor broader · GAP for TMHCC: no standalone PA/business-travel section. Tysers (PA & Business Travel) is extensive; Yutree covers PA assault. Allianz references a ‘Personal Accident’ section in its exclusions (not in the cover list – review). AXA XL has NO personal-accident cover.

4 Full coverage matrix — Media Liability / PI feature detail

The Media Liability / Professional Indemnity section (TMHCC S12; Tysers S8; Yutree PI-Media) is the heart of a media wording, so it is compared feature-by-feature below. Liberty and Allianz provide no media/PI cover and are shown as not covered throughout.

✓ Covered ◐ Partial / conditional / sub-limit ✗ Not covered / not identified ? Unclear – requires review

Media Liability / PI feature	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL	Comment / practical impact
Defamation / libel / slander / malicious falsehood	✓	✓	✓	✗	✗	✗	Equivalent · TMHCC and Yutree cover 'unintentional' defamation; Tysers covers unless the statement was known/ought-to-have-been-known to be defamatory. Broadly equivalent. Liberty/Allianz/AXA XL: no PI.
IP infringement – copyright / trademark / passing off	✓	✓	✓	✗	✗	✗	Equivalent · All three media wordings cover unintentional IP infringement incl. passing-off.
Patent infringement	✗	✓	✗	✗	✗	✗	Competitor broader · Tysers (clause 8.9) expressly includes PATENT infringement within IP cover. TMHCC and Yutree EXCLUDE patents. TMHCC is sensibly more restrictive (patents are hard to underwrite).
Breach of confidence / invasion of privacy	✓	✓	✓	✗	✗	✗	Equivalent · Covered by all three media wordings (TMHCC/Yutree on an 'unintentional' basis; Tysers clauses 8.11/8.12).
Breach of professional duty / negligence / E&O	✓	✓	✓	✗	✗	✗	Equivalent · Core E&O. Covered by all three media wordings.
Dishonesty / fraud of employees (write-back)	✓	◐	✓	✗	✗	✗	Equivalent · TMHCC (Insuring Clause 1.I) and Yutree (Dishonesty & fraud cover) grant an express write-back for employee dishonesty; Tysers via its Criminal/Malicious Acts exclusion with an employee carve-out.
Defence costs payable IN ADDITION to the limit	✓	✓	✓	✗	✗	✗	Equivalent · All three pay defence costs in addition, with proportionate reduction once the limit is exceeded.
Territorial / jurisdiction scope	◐	✓	◐	✗	✗	✗	Competitor broader · Tysers PI is WORLDWIDE. TMHCC limits cover to the Schedule Geographical Limits and EXCLUDES actions brought outside the stated Jurisdiction (default worldwide ex-US/Canada). Yutree restricts US/Canada. Competitor (Tysers) broader.
Data-protection defence costs	✓	◐	✗	✗	✗	◐	TMHCC stronger · TMHCC grants Data Protection Defence Costs (GBP 250k). Yutree EXCLUDES breach of data-protection law in PI. AXA XL provides only a DP Act 2018 defence-costs extension within Public Liability (not a media/PI grant). TMHCC clearer/broader.
Criminal / statutory prosecution defence costs	◐	✓	✓	✗	✗	✗	Competitor broader · Tysers pays statutory defence costs (Bribery/Corporate Manslaughter/H&S/CDM — GBP 1m). Yutree pays Criminal Prosecution Defence Costs (GBP 250k). TMHCC S12 grants only Data-Protection defence costs (broader criminal cover sits in S13/S14).
Reputation management / crisis-PR costs	✓	✗	✓	✗	✗	✗	Equivalent · TMHCC and Yutree both grant Reputation Management costs (GBP 250k). Not identified in Tysers S8.
Withdrawal / alteration of content (incl. ASA/OFCOM)	✓	✗	✓	✗	✗	✗	Equivalent · TMHCC and Yutree both grant Withdrawal of Content (GBP 250k) including ASA/OFCOM complaints. Not identified in Tysers.

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Rectification / mitigation costs	✓	✓	✓	✗	✗	✗	Equivalent · All three pay rectification/mitigation costs that avert a larger claim (TMHCC Rectification; Tysers 8.14; Yutree Mitigation).
Costs to PROSECUTE infringement of the insured's own IP	✓	✗	✓	✗	✗	✗	Equivalent · TMHCC (GBP 25k) and Yutree (IP-rights prosecution) fund pursuit of the insured's own IP, subject to a supporting legal opinion. Not identified in Tysers.
Distributors & purchasers extension	✗	✓	✗	✗	✗	✗	Competitor broader · Tysers (clause 8.7) extends indemnity to purchasers/co-producers/distributors of the insured's media material (up to 5x the limit). Not provided by TMHCC or Yutree.
Journalistic source-protection / challenge to subpoena	✗	✓	✗	✗	✗	✗	Competitor broader · Tysers (clause 8.13) funds legal costs to challenge a subpoena requiring disclosure of a source. Not provided by TMHCC or Yutree — broker-sensitive for editorial/news clients.
Representation costs at investigations / inquiries	●	✓	●	✗	✗	✗	Competitor broader · Tysers (8.15, GBP 25k) covers representation at official examinations/inquiries. TMHCC provides this only via Data-Protection defence; Yutree via Criminal-Prosecution defence.
Loss of documents	✓	✓	✓	✗	✗	✗	Equivalent · Covered by all three media wordings (TMHCC Insuring Clause; Tysers 8.10 GBP 1m; Yutree Loss of Documents, GBP 500 excess).
Unintentional virus transmission	✓	✓	●	✗	✗	✗	Equivalent · TMHCC (GBP 500k sub-limit, targeted-virus write-back) and Tysers (8.16, GBP 250k) cover unintentional virus transmission. Yutree treats virus within its broader cyber exclusion.
Mergers & acquisitions / subsidiary auto-acquisition	✓	?	✓	✗	✗	✗	Equivalent · TMHCC and Yutree both auto-include newly created/acquired entities below a 20% turnover threshold, with notification above. Tysers position requires review.
Pollution write-back (negligent advice)	✗	✗	●	✗	✗	✗	Competitor broader · Yutree grants a limited pollution write-back where the cause is a specific act/error/omission of the insured. TMHCC and Tysers exclude pollution from PI.
Cyber/data general exclusion impact on PI cover	✓	✓	✗	✗	✗	✗	TMHCC stronger · TMHCC's general cyber/date exclusion applies to Sections 1–11 ONLY, leaving S12 with bespoke virus/unauthorised-access cover; Tysers' Electronic-Risk exclusion is dis-applied to S8. Yutree's PI carries a BROAD cyber & data-protection exclusion.
Senior-counsel (KC) dispute-resolution clause	●	?	✓	✗	✗	✗	Competitor broader · Yutree includes a clear King's Counsel arbitration clause for defence/settlement disputes. TMHCC relies on a general mediation/dispute condition; Tysers requires review.

5 Competitor-by-competitor analysis

Tysers “Focus” Combined ‘All Risks’ Media (capacity: Zurich Insurance plc)

9 sections: Production Property, Property Damage, BI, Money, Production (Multimedia & Producers Indemnity), EL, Public & Products, Professional Indemnity/E&O, Personal Accident & Business Travel.

Where it competes well

- PI/E&O (S8) is WORLDWIDE and notably broad — includes PATENT infringement, statutory defence costs (Bribery/Corporate Manslaughter/H&S/CDM, GBP 1m), Distributors & Purchasers extension (5x limit), journalistic source-protection costs, and representation costs (GBP 25k).
- Extensive standalone Personal Accident & Business Travel section (S9).
- Loss of documents sub-limit GBP 1m.

Where TMHCC is broader

- No terrorism cover (excluded outright).
- No dedicated Goods in Transit section (Money only).
- No Loss of Licence, Legal Expenses, Management Liability or standalone Cyber.
- No Reputation-Management or Withdrawal-of-Content extension identified in PI.

Media & Entertainment by Yutree (capacity: AXA Insurance UK plc)

12 cover sections incl. Property, Production Property, Computer Breakdown, BI, Terrorism, EL, Public & Products, Money & PA assault, Goods in Transit, Production Indemnity, PI-Media and PI-Events.

Where it competes well

- Two PI sections (Media; and Events & Installations) — useful where the client runs live events.
- Strong PI extensions: Reputation Management (GBP 250k), Withdrawal of Content (GBP 250k), Criminal Prosecution Defence (GBP 250k), Mitigation, limited Pollution write-back, and a clear King’s Counsel dispute-resolution clause.
- Standalone Computer Breakdown section; Goods in Transit section.

Where TMHCC is broader

- PI carries a BROAD cyber & data-protection-law exclusion (strips cyber-related PI and DP defence).
- Excludes patents.
- No Loss of Licence, Legal Expenses, Management Liability or standalone Cyber-liability section.

Liberty Entertainment Combined Policy

6 cover sections: Material Damage, Business Interruption, Terrorism, Money, Employer’s Liability, Public & Products Liability.

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

Where it competes well

- Property-led wording with detailed Material-Damage extensions (removal to private home, capital additions, professional fees).
- Clear, well-structured general exclusions/conditions.

Where TMHCC is broader

- NO Media Liability / PI / E&O cover — not an errors-&-omissions wording.
- No Production Indemnity, Goods in Transit, Loss of Licence, Legal Expenses, Management Liability, Cyber or Personal Accident.

Allianz Entertainment ‘Complete’ Policy

8 cover sections (+Terrorism): Property Damage, BI, Increased Cost of Working, Book Debts, Money, Own Goods in Transit, Specified All Risks, EL, Public & Products.

Where it competes well

- Granular BI suite — Increased Cost of Working and Book Debts as discrete sections.
- Mature property-package drafting (Specified All Risks, GIT).

Where TMHCC is broader

- NO Media Liability / PI / E&O cover.
- No Production Indemnity, Loss of Licence, Legal Expenses, Management Liability or standalone Cyber.
- Personal Accident referenced in exclusions but not in the provided cover list (requires review).

AXA XL — Media & Entertainment Combined Corporate (XL Catlin Insurance Company UK Ltd; ‘Crisis Management & Special Risks’, June 2021)

3 operative sections only: Material Damage (Buildings/Contents, Machinery/Plant/Equipment, ‘Technical Equipment’ and a Money specification), Business Interruption (incl. Rent Receivable/Turnover), and Liability (7A Public, 7B Product, 7C Employers’).

Where it competes well

- Clean, modern ‘single contract’ combined drafting; Material Damage covers Technical Equipment used in the Business and includes a Money specification.
- Public Liability includes a Data Protection Act 2018 defence-costs extension (a deliberate carve-out from the broad cyber exclusion).

Where TMHCC is broader

- NO Media Liability / PI / E&O, Production Indemnity, Cyber section, Legal Expenses, Management Liability, Loss of Licence, Goods in Transit or Personal Accident — despite the ‘Media & Entertainment’ title.
- Terrorism EXCLUDED absolutely (Policy Exclusion 3.4, ex-EL) — no buy-back.
- Punitive/exemplary damages and fines EXCLUDED absolutely (3.2) — no defamation write-back.
- Broad cyber / electronic-data exclusion across all sections (only a DP Act 2018 carve-out within Public Liability).

All five competitors mapped: Tysers (Zurich), Yutree (AXA), Liberty, Allianz and AXA XL have each been parsed in full and assessed against the TMHCC base wording. AXA

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

XL — the fifth wording — confirms the pattern: it is a lean property/Bi/liability package with no media/PI cover.

6 TMHCC strengths

Where the TMHCC base wording is demonstrably stronger, broader or clearer than the competitor wordings reviewed:

Strength	Why it matters
Widest section count in the peer group	The only wording among the six offering all 15 sections in a single contract — a genuine 'one-stop' media & entertainment package. Three of the five competitors (Liberty, Allianz and AXA XL) carry NO media/PI cover at all.
Four sections no competitor offers	Loss of Licence (S10), Commercial Legal Expenses (S13), Management Liability (S14) and a standalone Cyber-liability section (S15 CyberGuard) are unique to TMHCC across all five competitors.
Standalone cyber that is genuine liability cover	CyberGuard provides multimedia, security & privacy, privacy-regulatory defence & penalties and PCI DSS cover — not merely first-party breakdown, and not a bare cyber EXCLUSION (as in AXA XL).
Broad, well-extended Media Liability (S12)	Wide 'any other civil liability' grant plus employee-dishonesty write-back, Data-Protection Defence Costs (GBP 250k), Reputation Management (GBP 250k), Withdrawal of Content (GBP 250k), IP-pursuit costs (GBP 25k) and M&A auto-acquisition.
Clean exclusion architecture	The general cyber/date exclusion is dis-applied to Sections 12–15, so the liability sections are governed by their own bespoke terms — avoiding the 'silent-cyber strip' seen in a competitor PI section and AXA XL's blanket cyber exclusion.
Favourable fines/penalties carve-back	Non-compensatory damages are written back for libel/slander/defamation awards and for punitive damages where the law permits payment — AXA XL, by contrast, excludes punitive/fines absolutely.
Protective, clearly-drafted claims architecture	Claim notification is an express condition precedent; aggregation, retroactive date and territorial/jurisdiction terms are clearly defined.

TMHCC strengths — evidenced against the final wording

Each strength below is (a) confirmed by citing the TMHCC clause and contents page, and (b) benchmarked against the named competitors. Where a competitor matches or beats us, it is stated. Competitor points that cannot be confirmed from an attached wording are labelled UNCONFIRMED.

Flexible (first-loss) Business Interruption

TMHCC position	Section 3 carries a 'Flexible Business Interruption Limit' endorsement: a SINGLE flexible limit shown in the Schedule applied collectively across multiple loss/expenditure heads — Loss of Income, Loss of Gross Profit, Loss of Fees, Increased Costs of Working, Additional Increased Costs of Working, Additional Research Expenditure and Outstanding Debts — instead of separate sub-limits ('All amounts payable collectively shall not exceed the Flexible Business Interruption Limit as shown in the Schedule').
Our clause / page	Section 3 — 'Flexible Business Interruption Limit' endorsement (contents p.38+).
Competitor benchmark	Liberty/Allianz/AXA XL present conventional BI on a declaration/estimated-revenue basis with named heads and sub-limits; none of the reviewed wordings shows an equivalent single flexible first-loss BI limit across heads.
Verdict	TMHCC broader / more flexible.
Confirmation status	UNCONFIRMED for competitor parity — verify against the live competitor BI wordings.

Contract Site extension (Section 3)

TMHCC position	The Section 3 'Contract Sites' extension covers interruption/interference as a result of Damage to property at ANY contract site ANYWHERE IN THE WORLD where the Insured are carrying out a contract of work. It is triggered by Damage to property at the contract site and does NOT require that property to be insured under the TMHCC policy.
Our clause / page	Section 3 — 'Contract Sites' extension (contents p.38+).
Competitor benchmark	Competitor BI extensions of this type are typically tied to insured property or to specified suppliers/premises; none reviewed clearly extends to damage to any (un-owned, un-insured) property at any worldwide contract site.
Verdict	TMHCC broader.
Confirmation status	UNCONFIRMED — verify competitor contract-site/supplier extensions.

Section 2 — worldwide Property & Equipment cover

TMHCC position	Section 2 base 'Geographical Limits' are defined as 'Anywhere in the world', and the Section 2 Transit Extension also applies 'anywhere in the world'. Worldwide cover therefore applies as STANDARD, subject to the 'Sub-Limit Restriction' that caps liability for Property Insured away from the Premises (any-one-location / any-one-item limits per the Schedule) and the Section conditions.
Our clause / page	Section 2 — 'Geographical Limits' definition + 'Transit Extension' + 'Sub-Limit Restriction' (contents p.31+).
Competitor benchmark	Several package competitors limit equipment/all-risks transit or away cover to a number of days (e.g. ~30 days) or to specified territories.
Verdict	TMHCC broader (worldwide as standard, with away-from-premises sub-limits).
Confirmation status	CONFIRMED in TMHCC wording (no amendment needed). Competitor day-limits UNCONFIRMED pending the live competitor wordings.

Floating contents across premises

TMHCC position	Section 1 'Contents' is defined as machinery, plant and all other contents belonging to or held in trust by the Insured and 'situate at ANY of the Insured's Premises' — i.e. contents float across all of the Insured's premises rather than being fixed to one address.
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Our clause / page	Section 1 — 'Contents' definition (contents p.23+).
Competitor benchmark	Package competitors commonly fix contents to a specified location/address, with floating cover only by endorsement.
Verdict	TMHCC broader (floating as standard).
Confirmation status	UNCONFIRMED — verify competitor location-basis wordings.

Higher limits / broader automatic extensions

TMHCC position	Section 12 carries Reputation Management (GBP 250k) and Withdrawal of Content (GBP 250k) as standard, Data-Protection defence costs (GBP 250k) and a Virus Transmission sub-limit of GBP 500k. The standalone Sections 13–15 add legal expenses, management liability and a full cyber section that most competitors lack entirely.
Our clause / page	Section 12 sub-limits + Sections 13–15 (contents p.73–103).
Competitor benchmark	Tysers virus transmission GBP 250k (TMHCC GBP 500k — higher); Tysers/Yutree match some S12 heads; Liberty/Allianz/AXA XL carry no media/PI/cyber/legal/management cover at all.
Verdict	TMHCC equivalent-or-higher on the shared heads and uniquely broad overall.
Confirmation status	Virus GBP 500k vs Tysers GBP 250k CONFIRMED from extracts; other competitor limits UNCONFIRMED pending live wordings.

US / USA-Canada / jurisdiction position

TMHCC position	The 'Jurisdiction' definition is 'worldwide but excluding the USA (and its territories/possessions) and Canada' where the Schedule is silent; Section 12 additionally excludes claims brought, or governed by laws, outside the Jurisdiction ('Legal Action' exclusion) and work outside the Schedule 'Geographical Limits'. USA/Canada is therefore a deliberate, rated option rather than automatic.
Our clause / page	General Definitions 'Jurisdiction'; Section 12 'Geographical Limits' & 'Legal Action' exclusions (contents p.73+).
Competitor benchmark	Tysers PI is worldwide with no jurisdiction exclusion (broader on territory); AXA XL by contrast excludes terrorism and punitive damages absolutely — evidence that disciplined territory/peril restrictions are market-normal.
Verdict	More disciplined than Tysers on territory by design; worldwide-ex-US/Canada by default. US/Canada offered as a rated option (links to Gap 2).
Confirmation status	Underwriting/legal sensitivity — any worldwide/US-Canada widening is a Section 12 sign-off item.

Discipline: TMHCC is not forced to win rows the wording does not support. The Section 2 worldwide and floating-contents positions are confirmed in the TMHCC wording; the competitor day-limits and location-basis points are marked UNCONFIRMED until the live competitor wordings are re-checked clause-by-clause.

7 Areas where competitors are broader

Stated objectively — where a competitor genuinely provides broader, clearer or materially useful cover. Each item is carried into the separate Gap-Fill / Wording Enhancement Strategy.

Area (competitor)	What the competitor does / TMHCC position
Worldwide PI territory (Tysers)	Tysers PI/E&O is worldwide; TMHCC S12 is limited to the Schedule Geographical Limits and excludes actions brought outside the stated Jurisdiction.
Patent infringement (Tysers)	Tysers covers patent infringement within IP; TMHCC (and Yutree) exclude it.
Statutory / criminal defence costs (Tysers & Yutree)	Tysers funds Bribery/Corporate-Manslaughter/H&S/CDM defence (GBP 1m); Yutree funds criminal-prosecution defence (GBP 250k). TMHCC S12 funds only data-protection defence (broader criminal cover sits in S13/S14).
Distributors & purchasers (Tysers)	Tysers extends PI to purchasers/co-producers/distributors of the insured's media material (5x limit) — absent from TMHCC.
Journalistic source protection (Tysers)	Tysers funds legal costs to challenge a subpoena requiring disclosure of a source — absent from TMHCC.
Personal Accident & Business Travel (Tysers; Yutree assault)	Tysers has an extensive PA/business-travel section; Yutree covers PA assault. TMHCC, Liberty, Allianz and AXA XL have no PA section.
Granular BI heads (Allianz)	Allianz splits Increased Cost of Working and Book Debts into discrete sections — a presentational advantage.
Standalone Computer Breakdown (Yutree)	Yutree offers a dedicated computer-breakdown section; TMHCC consolidates IT breakdown within S1/S2 — confirm it is explicit.
Limited pollution write-back in PI (Yutree)	Yutree grants a limited pollution write-back for the insured's own negligent act/error/omission.
KC dispute-resolution clause (Yutree)	Yutree's clear King's Counsel arbitration clause for defence disputes is a drafting-clarity advantage.

8 Exclusions comparison

General exclusions (all sections)

Note: In this table ✓ = the exclusion APPLIES, ◐ = partial / write-back present, ✗ = exclusion absent or carved back, ? = requires review.

General exclusion	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL	Comment / practical impact
War / nuclear / radioactive contamination	✓	✓	✓	✓	✓	✓	Standard market exclusion present in all six wordings (AXA XL 3.3/3.5, incl. weapons of mass destruction). Broadly equivalent.
Terrorism (property/BI)	◐	✓	◐	◐	◐	✓	TMHCC, Yutree, Liberty, Allianz write terrorism back via a dedicated section. Tysers and AXA XL (3.4) EXCLUDE terrorism outright with no buy-back.
Pollution / contamination	✓	✓	✓	✓	✓	✓	Excluded by all with the usual sudden/accidental & defined-peril write-backs (AXA XL: MD exclusion (p) and Liability pollution exclusion). Equivalent.
Asbestos	✓	◐	✓	✓	✓	✓	Tysers PI has a professional-duty WRITE-BACK (cover where liability arises from negligent advice, GBP 1m, ex-BI). TMHCC, Yutree and AXA XL (3.1, ex-EL) exclude asbestos more strictly.
Cyber / electronic risk (first-party damage & BI)	✓	✓	✓	✓	✓	✓	All exclude cyber-caused damage/BI. KEY DIFFERENCE: TMHCC dis-applies its cyber/date exclusion to Sections 12–15; Tysers dis-applies Electronic Risk to S8 PI. AXA XL's cyber exclusion (3.7) is broad with only a DP Act 2018 carve-out; Yutree's PI carries a broad cyber/data exclusion.
Date recognition / data-processing failure	✓	✓	✓	✓	✓	◐	Standard 'millennium/date'-style exclusion in the property packages. AXA XL has no separate date clause — subsumed within its broad cyber/electronic-data exclusion. Equivalent in substance.
Communicable disease / pandemic	✓	✗	?	?	?	✓	TMHCC and AXA XL (3.8) both carry a BROAD communicable-disease exclusion (applies notwithstanding all other terms). Not identified in Tysers; Yutree/Liberty/Allianz require confirmation. TMHCC is well-protected here (a deliberate restriction).
Sanctions / trade restrictions	✓	✓	✓	✓	✓	✓	All carry a sanctions clause (AXA XL 4.4). TMHCC has both a Trading-Sanctions and an International-Sanctions clause. Equivalent.
Northern Ireland (civil commotion) / sonic bangs	?	✓	?	✓	✓	?	Standard UK property-package carve-outs present in Tysers/Liberty/Allianz; TMHCC and AXA XL treatment within property sections requires confirmation.

Media Liability / PI-specific exclusions

Liberty, Allianz and AXA XL have no PI section and are shown as not applicable.

PI exclusion	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL	Comment / practical impact
Contractual / assumed liability	✓	✓	✓	—	—	—	Excluded by all three media wordings, with the standard write-back for liability that would exist absent the contract. Equivalent.

Indicative wording comparison — broking reference only. Refer to the full policy wordings. Subject to TMHCC legal/underwriting sign-off.

Deliberate / reckless / dishonest acts (with employee write-back)	✓	✓	✓	—	—	—	All exclude deliberate/dishonest acts of the insured but write back dishonest acts of employees. Equivalent.
Bodily injury / property damage	✓	✓	✓	—	—	—	Excluded unless arising from negligent publication/advice. Equivalent.
Fines / penalties / punitive damages	🟡	?	?	—	—	—	TMHCC excludes non-compensatory damages BUT writes back libel/slander/defamation awards and punitive damages where the law permits — a favourable carve-back. (Note: AXA XL's general policy excludes punitive/exemplary damages and fines ABSOLUTELY, with no write-back — TMHCC is clearer/broader.)
Prior known claims / circumstances	✓	✓	✓	—	—	—	Excluded by all three (claims-made hygiene). Equivalent.
Insolvency / financial failure of the insured	✓	?	?	—	—	—	TMHCC expressly excludes claims arising from its own insolvency/liquidation. Competitor positions require review.
USA / Canada jurisdiction	✓	✗	🟡	—	—	—	TMHCC excludes actions brought / governed outside the stated Jurisdiction (default ex-US/Canada). Tysers PI is WORLDWIDE. Yutree restricts US/Canada exposure. Competitor (Tysers) broader.
Patent infringement	✓	✗	✓	—	—	—	TMHCC and Yutree exclude patents; Tysers covers patent infringement. TMHCC sensibly more restrictive.
Cyber act / breach of data-protection law (within PI)	✗	✗	✓	—	—	—	Yutree's PI carries a broad cyber-act & data-protection-law exclusion. TMHCC instead grants bespoke cover (virus, unauthorised access, DP defence costs) — TMHCC broader/clearer.
Pollution / seepage	✓	✓	🟡	—	—	—	TMHCC and Tysers exclude pollution from PI; Yutree grants a limited write-back for the insured's own negligent act/error/omission.

Exclusions — key takeaways: TMHCC is sensibly MORE protected on communicable disease, patents and US/Canada jurisdiction. The genuine write-back opportunities a competitor offers are: asbestos professional-duty (Tysers), pollution negligent-advice (Yutree) and a rated worldwide/US-Canada PI option (Tysers). TMHCC is clearer where its cyber/date exclusion is dis-applied to the liability sections, avoiding a 'silent-cyber strip' of PI.

9 Conditions, warranties and claims obligations

Condition / obligation	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL
Claim notification	Express CONDITION PRECEDENT to liability — notify as soon as practicable (S1–11); S13 within 28 days; S12 claims-made notification during the period. Among the most protective drafting.	Notification under Special Condition 1; S8 PI is claims-made.	Claims-made; defined notification conditions for claims and claim circumstances.	Forward every claim document immediately on receipt.	Forward claim/notify per claims condition; potential proportionate remedy.	Written notice to Insurer per Policy Conditions; claims co-operation conditions.
Basis of cover (PI/Media)	S12 Media Liability is claims-made with Retroactive Date; defence-costs in addition.	S8 PI/E&O claims-made; defence costs in addition; Excess does not apply to defence costs.	PI-Media claims-made; retroactive date; defence costs in addition.	n/a — no PI/media section.	n/a — no PI/media section.	n/a — no PI/media section.
Reasonable precautions / cyber-security	S12 imposes detailed computer-security conditions (firewall, AV, password change/60 days, encryption, logging, back-ups) and 'reasonable steps to avoid loss'.	Loss-of-documents condition requires back-ups at least every 7 days off-site.	Reasonable-precautions and security expectations apply.	General 'your duties' / reasonable precautions section.	Reasonable-precautions and maintenance conditions.	Reasonable-precautions / maintenance and duty-of-care conditions.
Change of control	S12 cover ceases on a change of control unless notified and agreed by endorsement.	Requires review.	Addressed via subsidiary creation/acquisition cover.	n/a (no PI).	n/a (no PI).	n/a (no PI).
Premium payment	S12 premium payment clause — 60 days, with 15-day cancellation notice.	Per policy/General Conditions.	Premium-adjustment condition with cancellation rights.	Standard cancellation section.	Standard cancellation provisions.	Standard premium / cancellation provisions (Policy Conditions).
Fair presentation (Insurance Act 2015)	Duty of fair presentation applies (UK).	Duty of fair presentation; Zurich data terms.	Express duty of fair presentation.	'Your duties' — fair presentation.	Fair-presentation conditions.	Insurer relies on information provided; fair-presentation basis.
Defence / dispute resolution	Insurer consent required (CP); general mediation/dispute condition (England & Wales).	Insurer controls defence; consent to settle.	Clear King's Counsel arbitration clause for defence/settlement disputes — strong drafting.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.

Claims obligations: TMHCC's claim-notification is an EXPRESS condition precedent to liability — among the most protective drafting in the peer group, and a point to retain (not soften). Yutree's King's Counsel dispute clause is a drafting-clarity advantage TMHCC could adopt.

10 Limits, sub-limits and excess comparison

Primary limits and excesses are schedule-driven and were not supplied; the table below compares the principal SUB-LIMITS within the Media Liability / PI sections (Liberty, Allianz and AXA XL have no PI section).

Media / PI sub-limit	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL
Primary limit of indemnity	Per Schedule	Per Schedule	Per Schedule	n/a	n/a	n/a
Virus transmission	GBP 500,000	GBP 250,000	Within cyber excl.	n/a	n/a	n/a
Data-protection defence costs	GBP 250,000	—	Excluded	n/a	n/a	PL: DP Act 2018 ext.
Criminal / statutory defence	— (DP only)	GBP 1,000,000	GBP 250,000	n/a	n/a	n/a
Reputation management	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a
Withdrawal of content	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a
Pursue insured's own IP	GBP 25,000	—	Limit	n/a	n/a	n/a
Loss of documents	Per Schedule	GBP 1,000,000	Limit (GBP 500 xs)	n/a	n/a	n/a
Representation costs	DP only	GBP 25,000	Within crim. defence	n/a	n/a	n/a
Court attendance (per day)	GBP 500 / 250	GBP 500 / 250 (25k agg)	Review	n/a	n/a	n/a
Distributors & purchasers	—	5x limit	—	n/a	n/a	n/a

Excess: TMHCC and the competitors apply a per-claim excess per the Schedule; both Tysers and TMHCC pay defence costs in addition to the limit (Tysers states the excess does not apply to defence costs). Confirm final limits/excesses against each Schedule.

11 Legal / underwriting review notes

Items flagged 'requires review' in the matrices, plus points for TMHCC legal / underwriting sign-off:

- Confirm whether TMHCC offers Personal Accident / Business Travel by endorsement (no standalone section identified).
- Allianz references a 'Personal Accident' section in its exclusions that is not in the provided cover list — confirm against the Allianz schedule.
- Confirm communicable-disease exclusion positions in the Yutree, Liberty and Allianz wordings (TMHCC carries a broad exclusion).
- Confirm Tysers and Yutree positions on fines/penalties and insolvency exclusions within PI (marked 'review').
- Confirm Increased Cost of Working / Book Debts and computer-breakdown are expressly addressed within TMHCC S3 and S1/S2 respectively.
- Primary limits, excesses and any 'insured/not insured' toggles are schedule-driven and must be confirmed against each Schedule.
- This comparison is indicative and for broking reference; it is subject to final TMHCC legal / underwriting sign-off before market use.

12 Appendix — detailed clause mapping

Cross-reference of comparable cover by FUNCTION across the wordings (section names are the actual headings used in each policy).

Cover (by function)	TMHCC	Tysers (Zurich)	Yutree (AXA)	Liberty	Allianz	AXA XL
Premises material damage	S1 Business 'All Risks'	S2 Property Damage	Property damage – All risks	S1 Material Damage	S1 Property Damage	MD: Buildings/Contents
Production / entertainment equipment	S2 Property & Equipment	S1 Production Property	Production property	Within S1 / Schedule	S6 Specified All Risks	MD: Technical Equipment
Business interruption	S3 Business Interruption	S3 BI 'All Risks'	BI – All risks	S2 Business Interruption	S2 BI / S2a ICOW / S3 Book Debts	BI Section
Terrorism	S4 Terrorism	Excluded	Terrorism section	S3 Terrorism	Terrorism	Excluded (3.4)
Employers' liability	S5 Employers' Liability	S6 Employers' Liability	Employers liability	S5 Employer's Liability	S7 Employers' Liability	7C Employers' Liability
Public & products liability	S6 Public / S7 Products	S7 Public & Products	Public & products liability	S6 Public & Products	S8 Public & Products	7A Public / 7B Product
Money	S8 Money	S4 Money	Money & PA assault	S4 Money	S4 Money	MD: Money spec
Goods in transit	S9 Goods in Transit	—	Goods in transit	—	S5 Own Goods in Transit	—
Loss of licence	S10 Loss of Licence	—	—	—	—	—
Production indemnity	S11 Production Indemnity	S5 Multimedia & Producers Indemnity	Production indemnity – All risks	—	—	—
Media liability / PI / E&O	S12 Media Liability	S8 Professional Indemnity/E&O	PI – Media; PI – Events	—	—	—
Legal expenses	S13 Commercial Legal Expenses	—	—	—	—	—
Management liability	S14 Management Liability	—	—	—	—	—
Cyber liability (standalone)	S15 CyberGuard	—	Computer breakdown (first-party)	—	—	Excluded (3.7)
Personal accident / travel	—	S9 PA & Business Travel	PA assault (Money/PA)	—	Referenced – review	—

End of Full Coverage Comparison. A companion document — TMHCC Gap-Fill / Wording Enhancement Strategy — sets out the recommended enhancements arising from this comparison.